

Provided that this provision shall not apply if the only persons employed as such shop assistants are members of the family of the occupier of the premises maintained by him and dwelling in his house.

(d) The occupier shall affix and constantly maintain in a conspicuous position in the premises a notice in the prescribed form referring to the provisions of this section, and stating the steps taken with a view to compliance therewith.

(2) Where the occupier of any premises has signified as aforesaid that he elects that the foregoing provisions shall apply, and any of those provisions are not complied with, the occupier of the premises shall be guilty of an offence against the Shops Act, 1912, and shall be liable to a fine not exceeding—

(a) in the case of a first offence, one pound ;

(b) in the case of a second offence, five pounds ; and

(c) in the case of a third or subsequent offence, ten pounds.

(3) For the purposes of this section, the expression “half holiday” means a day on which the employment of an assistant ceases not later than three o'clock in the afternoon and on which he is not employed for more than six hours including meal-time.

(4) A notice under this section may be withdrawn by the occupier of the shop at the expiration of a year from the date when it was given, and thereafter at the expiration of any succeeding year, and upon any such withdrawal section one of the Shops Act, 1912, shall apply to the shop in like manner as before the notice was given.

(5) The Shops Act, 1912, as amended by this Act, shall, in its application to any premises in respect to which a notice under this section is in force, have effect as though the definition of “shop assistant” included all persons wholly or mainly employed in any capacity at the premises in connexion with the business there carried on.

Short title and
extent.

2.—(1) This Act may be cited as the Shops Act, 1913, and shall be construed as one with the Shops Act, 1912 ; and the Shops Act, 1912, and this Act may be cited together as the Shops Acts, 1912 and 1913.

(2) This Act shall not extend to shops in Ireland in which the business of the sale by retail of intoxicating liquors is carried on.

CHAPTER 25.

An Act to prevent the Spread and provide for the Treatment of Tuberculosis ; and for other purposes connected therewith. [7th March 1913.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) The provisions of Part II. of the Tuberculosis Prevention (Ireland) Act, 1908 (in this Act referred to as the principal Act), with respect to the classification of expenses of county councils as establishment expenses and patients' expenses shall cease to have effect, and all expenses of a county council under the principal Act or this Act shall be raised by means of the poor rate, and, as respects the expenses of the council of any county other than a county borough, as a county-at-large charge.

Expenses of
county
councils.
8 Edw. 7. c. 56.

(2) A county council, for the purpose of defraying expenses incurred by them in the execution of the principal Act or this Act in the financial year ending the thirty-first day of March nineteen hundred and thirteen, for the payment of which provision was not made in their estimates for that year, may, subject to the approval of the Local Government Board, borrow money temporarily as for the purposes of section four of the principal Act, or otherwise as the Local Government Board may sanction.

(3) Sections seven and ten of the principal Act shall cease to have effect.

2.—(1) The county councils providing a common hospital or dispensary under Part II. of the principal Act shall contribute to the expenses thereof in such proportions as may be agreed upon or, in default of agreement, in such proportions as may be determined by the Local Government Board.

Contributions
by county
councils to
common hos-
pitals and
dispensaries.

(2) Section nine of the principal Act shall cease to have effect.

3.—(1) Any joint board constituted under the Public Health (Ireland) Acts, 1878 to 1907, for the provision of a hospital for the treatment of consumptives, may, with the consent of the Local Government Board, enter into and carry into effect an agreement for the transfer of the hospital and the property held or used in connexion therewith to the council of any county or to the councils of any two or more counties jointly for the purposes of Part II. of the principal Act, and the Local Government Board may, after due inquiry, make under their seal such orders as may be necessary to enable the agreement to be carried into effect.

Transfer to
county councils
of hospitals
provided under
the Public
Health Acts.

(2) An order of the Local Government Board under this section may, amongst other things, provide for the dissolution of the joint board, and the repeal or amendment of any provisional order relating to that board, and may apportion and adjust any property, income, debts, liabilities, and expenses of any area or authority affected by the transfer, and shall contain such consequential provisions with respect to the settlement of differences, payment of sums, and otherwise as to the Local Government Board may seem necessary.

(3) For the purpose of paying any sum in pursuance of an order under this section, a local authority may borrow, in the case

of a county council as for the purposes of section four of the principal Act, and, in the case of the council of any county district, as for the purposes of the Public Health (Ireland) Acts, 1878 to 1907.

(4) The provisions of any order made under this section shall have effect as if enacted in this Act.

Persons who
may be re-
ceived in
county council
hospitals.

4. It is hereby declared that a person suffering from tuberculosis may be admitted to and maintained and treated in any hospital provided under Part II. of the principal Act, notwithstanding that he is not an inhabitant of a county the council of which has provided or has joined in providing the hospital.

Sites for
hospitals and
dispensaries.

5.—(1) The Local Government Board may place any land vested in them at the disposal of a county council as a site for a hospital or dispensary to be provided under Part II. of the principal Act, and may convey the land to the county council for that purpose upon such terms and conditions as they think proper.

(2) Before any land is dealt with under this section the Local Government Board shall give public notice by advertisement in the locality in which the land is situate, and, if objection in writing is made to the proposal by any person interested in the land, the land shall not be placed at the disposal of a county council unless a public inquiry has been held in the locality in which the land is situate and the person holding such inquiry reports to the Local Government Board in favour of the land being so dealt with.

Repeal, short
title, and con-
struction.

6.—(1) The enactments specified in the Schedule to this Act are hereby repealed to the extent specified in the third column of that schedule.

(2) This Act shall be construed as one with the principal Act, and may be cited as the Tuberculosis Prevention (Ireland) Act, 1913; and this Act and the principal Act may be cited together as the Tuberculosis Prevention (Ireland) Acts, 1908 and 1913.

Section 6.

/ SCHEDULE.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
8 Edw. 7. c. 56	The Tuberculosis Prevention (Ireland) Act, 1908.	Section seven. Subsection (2) of section eight. Section nine. Section ten. In section thirteen, paragraph (b). Subsection (3) of section fifteen.